

Kiran Devi v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 2 December 2023 · 2023:AHC:228246-DB · Writ-C No. 40551 of 2023 · **Writ disposed; arrears calculation left to clause 6.5 or OTS**

HEADNOTE

A consumer aggrieved by the Electricity Department's quantification of arrears after her representation was decided may approach the Department under Clause 6.5 of the U.P. Electricity Supply Code, 2005, or under the One Time Settlement Scheme then in force. The writ was disposed of without examining the figure of Rs.94,415.

FACTUAL SUMMARY

Kiran Devi's electricity connection was disconnected for non-payment of arrears. She filed Writ-C No. 21462 of 2023, which this Court disposed of on 21 July 2023 by asking the respondents to decide her representation. The Electricity Department decided that representation on 12 September 2023 and required her to deposit Rs.94,415. Aggrieved by that calculation, she filed the present writ against the State of Uttar Pradesh and the Electricity Department.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

post-representation arrears quantification

HOLDING

Where the consumer is aggrieved by the Electricity Department's calculation of arrears after her representation has been decided, she may approach the Department under Clause 6.5 of the U.P. Electricity Supply Code, 2005, or under the One Time Settlement Scheme then in force. The writ is disposed of on that observation, without a decision on the sum demanded. ¶ 4-5

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ

The Division Bench disposed of the writ on the observation that a consumer challenging the Department's post-representation quantification of arrears may approach the Electricity Department under Clause 6.5, or under the One Time Settlement Scheme then prevailing. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND OF RS.94,415 FIXED BY THE ORDER DATED 12 SEPTEMBER 2023 IS CORRECT

Left to a Clause 6.5 approach or the One Time Settlement Scheme then in force. ¶ 3-5